Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held Electronically on Monday, September 21, 2020 at 7:00 p.m.

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		A. Khan
		L. Bower

1. Call to Order

Mayor Collier gave a short introduction regarding the electronic Council meeting format and noted that the meeting was being live streamed on the Town's website.

Mayor Collier called the meeting to order at 7:00 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Adoption of Minutes

Moved by: L. Bower
Seconded by: A. Khan

That the Minutes of the regular meeting of Council held on July 27, 2020 be adopted.

CARRIED

Moved by: R. Tyler Morin
Seconded by: M. Crawford

That the Minutes of the Closed Session meeting of Council held on July 27, 2020 be adopted.

CARRIED

4. Question Period

Mayor Collier noted that members of the public were advised they could submit questions regarding the agenda to the Town Clerk up until noon on the day of the meeting. No questions were received.

5. Delegation and Petitions/Public Hearings

5.1 Ajax Anti-Black Racism Task Force Update

Mariska Thomas, Chair, Ajax Anti-Black Racism Task Force (AABRTF), acknowledged the nominating committee and provided a summary of the recruitment process for the AABRTF. Ms. Thomas provided an overview of the terms of reference and draft work plan, acknowledged the individuals selected for the AABRTF, and shared a summary of goals and action items developed for the Task Force. She noted that materials will be posted on the AABRTF 'In My Opinion' Hub webpage.

Mayor Collier introduced Natasha Sharma, Diversity and Inclusion Coordinator with the Town.

Members thanked Ms. Thomas for the work of the nominating committee and Task Force to date. Members of Council asked questions regarding social media presence for the Task Force, posting of minutes, task force members' stories, the number of people who applied to the task force, member representation by ward, and opportunities for engagement with those not selected.

Ms. Thomas responded to questions from Council and thanked Council for the Town's support for the creation of the Task Force.

5.2 COVID-19 Response Update

Shane Baker, Chief Administrative Officer, provided a summary of the contents of the written report and shared updates on service delivery and facility re-opening plans. He noted that the Municipal Emergency Control Group continues to review re-opening plans for municipal facilities amidst changing provincial guidelines.

Council Members asked questions regarding the provincial state of emergency declaration, authorities under the *Re-opening Ontario Act, 2020,* re-opening schedules for Recreation fitness centres, current staffing levels, municipal state of emergency duration, public feedback on mask requirements, availability of public washrooms, ice allocation, patio permits, and the second round of municipal recovery funding. Members of Council acknowledged the Town's support for business recovery and inquired how not-for-profit organizations and faith-based communities are being supported.

S. Baker responded to questions from Council and indicated that updated communications regarding gathering restrictions are to be continued. He discussed re-opening processes for recreation facilities and staffing levels.

Geoff Romanowski, Director of Planning and Development Services, shared plans for the Economic Development Department to discuss engaging with other community organizations and noted Council will be updated accordingly. He responded to questions from Council regarding consideration of extending the temporary patio permit program.

6. Correspondence

Members separated correspondence Item 3 for discussion.

Moved by: A. Khan
Seconded by: J. Dies

That the balance of the report dated September 21, 2020 containing Items of Correspondence be adopted.

CARRIED

Council Members discussed Correspondence Item 3 “City of Oshawa: Construction of Accessible Units as Part of all Residential Development Projects”.

Moved by: J. Dies
Seconded by: L. Bower

That Item 3 of the Correspondence Report “City of Oshawa: Construction of Accessible Units as Part of all Residential Development Projects” be endorsed.

7. Reports

7.1 Community Affairs & Planning Committee Report

Moved by: L. Bower
Seconded by: J. Dies

That the Community Affairs & Planning Committee Report dated September 8, 2020 be adopted.

CARRIED

7.2 General Government Committee Report

Moved by: S. Lee
Seconded by: R. Tyler Morin

That the General Government Committee Report dated September 14, 2020, be adopted.

CARRIED

7.3 Summary of Advisory Committee Activities

None

7.4 Departmental Reports

7.4.1 **Harwood Avenue North Update**

Members of Council asked questions about installation of a pedestrian crossing at Haskell Avenue and discussed the timeline for completion of the Harwood Avenue North road widening project and capital project impacts.

John Grieve, Transportation Supervisor, responded to questions from Members and provided clarification that a full signalized pedestrian crossing will be included with the widening of Harwood Avenue North. He responded to questions regarding estimated cost for installation of a pedestrian crossing and timing of design and installation if done separately from the widening project.

Motion

That the report entitled "Harwood Avenue North Update" be received for information.

Motion to Amend

Moved by: S. Lee
Seconded by: A. Khan

That staff be directed to design and install a pedestrian crosswalk at Harwood Avenue North and Haskell Avenue, as an in-year budget approval.

Recorded Vote

In favour: Regional Councillor Lee, Councillor Khan, Councillor Tyler Morin, Mayor Collier
Opposed: Councillor Bower, Regional Councillor Crawford, Regional Councillor Dies

CARRIED

Main Motion as Amended

Moved by: A. Khan
Seconded by: S. Lee

That the report entitled "Harwood Avenue North Update" be received for information; and

That staff be directed to design and install a pedestrian crosswalk at Harwood Avenue North and Haskell Avenue, as an in-year budget approval.

CARRIED

7.4.2 **Contract Award – Annual IT Hardware Upgrades and Replacements**

Members of Council asked questions regarding standardization of equipment for staff and purchasing agreement details.

Alexander Harras, Acting Director of Legislative & Information Services/Clerk, and Chris Walker, Manager of Information Technology, responded to questions and provided information on device imaging, pricing, bulk purchasing, and servicing within the Ontario Education Collaborative Marketplace (OECM) agreement.

Moved by: S. Lee
Seconded by: L. Bower

1. That council award the contract for Hardware Upgrades and Replacements, as required, to Dell Canada Inc. by utilizing the Ontario Education Collaborative Marketplace (OECM) contract in the estimated amount of $96,129 (inclusive of all taxes) for a period of September 22, 2020 to December 31, 2020

2. That staff be authorized to continue utilizing the contract for an additional 3 years pending satisfactory performance review on an annual basis of the contract, to a maximum amount of $750,000. (inclusive of all taxes)

CARRIED

7.4.3 **COVID-19 Response Update**

Moved by: R. Tyler Morin
Seconded by: J. Dies

That Ajax Council receive this report for information.

CARRIED

8. Regional Councillors' Report

Regional Councillors provided an update regarding Durham Regional Council matters, including presentations and discussions relating to the commencement of the red-light camera and automated speed enforcement projects in Ajax, waste management system and recycling bin lid pilot project extension, targeted regional property tax increase, and Durham Region Transit service updates, including launch of a new scheduling app and Presto integration.

Moved by: M. Crawford
Seconded by: A. Khan

That the Regional Councillors' Reports of September 21, 2020 be received for information.

CARRIED

9. Business Arising from Notice of Motion

Motion to Suspend the Rules of Procedure

Moved by: J. Dies
Seconded by: L. Bower

That the Rules of Procedure be suspended in order to introduce a motion without notice regarding the Durham Regional Police Body-Worn Camera Project.

CARRIED on 2/3rds

9.1 **Durham Regional Police Body-Worn Camera Project**

Regional Councillor Crawford introduced the motion and its contents. Council Members discussed their support for the motion.

Moved by: M. Crawford
Seconded by: S. Lee

WHEREAS the Durham Region Police Service (DRPS) released its Body-Worn Camera (BWC) Pilot Evaluation Report on September 14th for consideration by Durham Region Police Services Board ("the Board");

AND WHEREAS the report concludes that the deployment of BWCs to Frontline Members of DRPS will provide value to DRPS, its partners and the community, and it aligns with the strategic plans of the Region, Town and DRPS;

AND WHEREAS the report further states that an investment in BWCs has tremendous potential to be an enabler of transformative and restorative change for the DRPS;

AND WHEREAS the Board's Finance Committee recommended the following on Sept 14th:

> *"THAT the Finance Committee recommend that the Board approve in principle the adoption of body-worn cameras for the DRPS; and*
>
> *THAT cost details and a phased implementation plan be finalized for deployment beginning in 2021 and that the necessary funding be sought from Regional Council separate and apart from the budget process;"*

AND WHEREAS Regional Council will be considering the BWC Pilot Evaluation Report at its meeting on September 30th;

NOW THEREFORE BE IT RESOLVED:

THAT Ajax Council supports the adoption of body-worn cameras (BWC) for the Durham Region Police Service, and recommends that the necessary funding for the program be allocated by Regional Council and/or through the reallocation of funds or resources from the DRPS budget;

AND THAT a copy of this motion be shared with the Ajax Anti-Black Racism Task Force, MP Mark Holland, MPP Rod Phillips, the Region of Durham, the Durham Region Police Services Board, and all Durham municipalities.

<u>Recorded Vote</u>

In Favour: Regional Councillor Crawford, Councillor Bower, Regional Councillor Dies, Councillor Khan, Regional Councillor Lee, Councillor Tyler Morin, Mayor Collier

Opposed: None

CARRIED

9.2 **Food Industry Worker Day**

Councillor Bower introduced the motion and reviewed its contents.

Moved by: L. Bower
Seconded by: J. Dies

WHEREAS World Food Day – an international day to take action against hunger and to advance healthy diets for all – is observed by 150 countries around the world on the third Friday of October (close in timing to Thanksgiving traditions in Canada), and is celebrating its 75th anniversary on October 16, 2020; and

WHEREAS As countries around the world come to terms with the health, social and economic damage caused by the COVID-19 pandemic, we have a renewed sense of understanding about how important national and locally-grown food supplies are, as grocery stores remained stocked with nutritious food options for Ajacians; and

WHEREAS The week of Thanksgiving allows Ajacians an opportunity to reflect on our great fortune to live in a country and province where local food is available year-round, but we must not lose sight of those who sacrifice to ensure that local food is planted, cultivated, harvested, processed and distributed; and

WHEREAS The agri-food industry employs almost 8,000 people in Durham Region alone, relies on approximately 600 seasonal agricultural workers, and directly impacts a further 25,000 people employed in food services (including grocery stores and restaurants); and

WHEREAS The direct and indirect economic impact of the agri-food industry is significant across the Region. According to Statistics Canada (2016), the average household in Durham Region spends almost $1,000 every month (11% of average household income) on food consumption, and over 200 farms in Durham Region report direct to consumer sales; and

WHEREAS Food industry workers endure tough working conditions including long hours, precarious and/or seasonal labour availability, and essential status through crisis events, like COVID-19, that directly put people in factories, in dorms or working in close proximity at risk;

THEREFORE, BE IT RESOLVED THAT

1) Ajax Council formally marks the 75th anniversary of World Food Day by proclaiming the Friday after Thanksgiving (October 16, 2020) as Food Industry Workers Day in Ajax, acknowledging with gratitude the sacrifices made to ensure we have abundant food available in our grocery stores and farmer's markets, maintaining healthy and fresh food options for Ajacians throughout the COVID-19 crisis and every day; and

2) That this resolution be distributed to Durham Regional Council, Durham Agricultural Advisory Committee, Durham Region MPs and MPPs, the Minister of Agriculture and Agri-Food, Ontario Minister of Agriculture, Food and Rural Affairs, and the Ontario Minister of Labour, Training and Skills Development

CARRIED

9.3 **Limiting Cash-Advance "Payday Loan" Stores in the Town of**

Regional Councillor Lee introduced the motion and reviewed its contents.

Moved by: S. Lee
Seconded by: L. Bower

WHEREAS beginning January 1, 2018, the Province of Ontario allowed municipalities to restrict where payday loan establishments can open and the number that can operate in a given area; and

WHEREAS there are almost 20 "payday loan" establishments in the Town of Ajax (TOA), concentrated along the Kingston Road corridor and in downtown Ajax; and

WHEREAS in September 2019, the City of Ottawa approved changes to their Zoning By-laws to stipulate that new payday loan establishments cannot be within 1 kilometer of each other, that no establishment could be within 300 metres of a school (including post-secondary), or within 500 metres of a casino or racetrack; and

WHEREAS in October 2019, the City of Toronto approved amendments to the City of Toronto Municipal Code's Licensing Policy to prohibit issuing any additional payday loan establishments and add a $645.53 application fee for a payday loan establishment location change request, adjusted annually based on the Consumer Price Index; and

WHEREAS a recent (May 20, 2020) City of Oshawa staff report recommended that the total number of payday loan establishments be limited to two (2) per ward to a total of 10 within City limits; and

WHEREAS in spite of limitations introduced by the Province of Ontario's Bill 197 limiting the interest rate at 2.5 per cent per month, and not allowing interest to be compounded on the outstanding principal (assuming the agreement is $1,500 or less, or terms are 62 days or less), Ajax Council believes that the number of payday loan establishments in TOA boundaries are worrisome from a consumer safety perspective and wishes to cap the establishments at current levels;

THEREFORE BE IT RESOLVED THAT:

1. Staff be directed to prepare a report to be presented at a future meeting of Council or the appropriate Standing Committee regarding:

    a. The creation of a licensing system specific to payday loan establishments, including accompanying fees set at a comparable rate in line with other GTHA municipalities;
    b. The restriction of the number of payday loan establishments per ward in the Town, with appropriate grandfathering provisions for currently operating establishments; and
    c. appropriate municipal tools or by-laws to establish restrictions on the location and concentration of payday loan establishments.

2. The Town of Ajax join the City of Oshawa in its advocacy efforts to request that the Government of Canada:

   a. Require chartered banks and credit unions to have branches in low-income neighbourhoods which offer credit lines to low-income people at the same rates they offer to other customers; and
   b. Work with partners such as credit unions and chartered banks, to encourage and steward the development of lower-cost financial products that can provide an alternative for users of payday loan establishments.

3 That this resolution be forwarded to Prime Minister Trudeau, Premier Ford, Hon. Mark Holland, MP and Hon. Rod Phillips, MPP, the Region of Durham, all Durham municipalities, the Federation of Canadian Municipalities and the Association of Municipalities of Ontario

CARRIED

Closed Session (9:05 p.m.)

10. Authority to Hold a Closed Session

Moved by: A. Khan
Seconded by: J. Dies

That Council convene to a Closed Session pursuant to Section 239 (2) (b) and (k) of the *Municipal Act, 2001,* as amended, to discuss personal matters about identifiable individuals, including municipal or local board employees, and a position, plan, procedure, criteria or instruction to be applied to any negotiations carried on or to be carried on by or on behalf of the municipality or local board.

CARRIED

10.1 **Personnel Matters**

10.2 **Confidential Negotiations**

Open Meeting (10:45 p.m.)

Ratify Actions Taken In Closed Session

Moved by: A. Khan
Seconded by: L. Bower

That all directions approved in the Closed Session be ratified.

CARRIED

11. By-laws

Moved by: S. Lee
Seconded by: A. Khan

That By-law numbers 31-2020 to 36-2020 be read a first, second and third time and passed.

CARRIED

12. Notice of Motion

None

13. New Business - Notices & Announcements

Council Members highlighted upcoming events and activities, including recognition of September 21 as World Alzheimer's Day.

14. Confirming By-Law

Moved by: S. Lee
Seconded by: M. Crawford

That By-law number 37-2020 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its regular meeting held on September 21, 2020 be read a first, second and third time and passed.

CARRIED

15. Adjournment

Moved by: J. Dies
Seconded by: R. Tyler Morin

That the September 21, 2020 meeting of the Council of the Town of Ajax be adjourned. (10:50 p.m.)

CARRIED

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Mayor

_____
Acting D-Clerk